

DOCUMENT 01 — VEHICLE SOURCING AND IMPORT FACILITATION AGREEMENT

Contrat de Prestation de Services — Sourcing et Facilitation d'Importation de Véhicule

COMPLETION SHEET (fillable)

Type directly into the fields below (Adobe Acrobat, Foxit, or any modern browser). Values entered here complete the corresponding [bracketed] placeholders in the body text that follows.

Agreement No.

Date (DD/MM/2026)

Place of execution

Agent — full legal / trade name

Agent — RC No.

Agent — NIF

Agent — registered address

Client — full name

Client — ID / Passport No.

Client — address

Vehicle — make / model / trim

Vehicle — VIN

Vehicle Price (USD/CNY)

Facilitation Fee (DZD)

Instalments (a/b/c %)

Competent courts (city / wilaya)

Prepared by (Broker) signature field / Client signature field:

Broker:

Client:

Agreement No. [____/2026] — Date: [DD/MM/2026] — Place: [City], People's Democratic Republic of Algeria.

Preamble — Parties

THE AGENT (Service Provider): [FULL LEGAL NAME / TRADE NAME], Commercial Register No. [RC ____], Tax Identification No. (NIF) [____], registered office at [FULL ADDRESS, WILAYA], represented by [NAME], acting as [TITLE] (hereinafter “**the Agent**”);

THE CLIENT (Importer of Record): Mr./Mrs. [FULL NAME], born on [DATE] at [PLACE], of Algerian nationality, holder of National Identity Card / Passport No. [____], resident at [FULL ADDRESS, WILAYA] (hereinafter “**the Client**”); (each a “**Party**”, together the “**Parties**”).

Recitals

WHEREAS Algerian regulations in force permit resident natural persons to import, once every three (3) years and for personal use, one (1) used passenger vehicle less than three (3) years old, powered by petrol, hybrid or electric motorisation, within the applicable displacement limits (the “**Import Quota**”);

WHEREAS the Client wishes to exercise his/her personal Import Quota and has requested the Agent's assistance in identifying a vehicle in the People's Republic of China and coordinating the logistics and administrative formalities of its importation;

WHEREAS the Agent is a service provider offering sourcing, coordination and administrative facilitation services, and **does not sell, import, or hold title to any vehicle** under this Agreement; **NOW, THEREFORE**, the Parties agree as follows:

Article 1 — Definitions

1.1 “**Vehicle**”: the used motor vehicle described in Annex A, identified by its Vehicle Identification Number (VIN): [____].

1.2 “**Chinese Supplier**”: the licensed used-vehicle export enterprise established in the People's Republic of China, identified in Annex B, which sells the Vehicle **directly to the Client**.

1.3 “**Facilitation Services**”: exclusively the services enumerated in Article 3.2, rendered in consideration of the Facilitation Fee.

1.4 “**Facilitation Fee**”: the fixed remuneration owed to the Agent under Article 5, distinct and separate from the Vehicle Price.

1.5 “**Vehicle Price**”: the purchase price payable **by the Client directly to the Chinese Supplier**, as stated in the Supplier's commercial invoice.

1.6 “**Import Quota**”: the Client's personal right under Algerian law to import one used vehicle less than three (3) years old, exercisable once every three (3) years.

1.7 “**Sourcing Commencement**”: the earlier of (a) the Agent's transmission to the Client of a vehicle proposal matching the specifications in Annex A; or (b) the Agent's engagement of any third party (supplier, inspector, freight forwarder) on the Client's behalf.

Article 2 — Legal Status of the Agent

2.1 The Agent acts **solely as a service provider and facilitator** (prestataire de services / mandataire) within the meaning of the provisions of the Algerian Civil Code governing mandate, and in no case as seller, buyer, reseller, dealer, distributor, importer, manufacturer, or manufacturer's representative.

2.2 **The Agent never acquires, holds, or transfers ownership of the Vehicle.** Legal title passes **directly from the Chinese Supplier to the Client** in accordance with the sale contract and the commercial invoice issued by the Chinese Supplier in the Client's name.

2.3 The Client is and remains at all times the **sole importer of record** before Algerian Customs, the domiciliation bank and all Algerian authorities. All import documents (bill of lading, commercial invoice, certificate of conformity, customs declaration) shall be established **in the Client's name**.

2.4 The Agent gives no warranty as to the Vehicle's mechanical condition, hidden defects (vices cachés), conformity or fitness for purpose. Any warranty claim lies exclusively against the Chinese Supplier and/or the manufacturer. The Agent's obligations are obligations of means (obligation de moyens), not of result.

2.5 Nothing in this Agreement creates any partnership, joint venture, employment or commercial agency relationship between the Parties.

Article 3 — Scope of Services

3.1 The Agent's engagement is strictly limited to the Facilitation Services listed in Article 3.2. Any service not expressly listed is excluded.

3.2 The Facilitation Services comprise:

- identification of one or more vehicles in China matching the specifications in Annex A;
- verification, on a best-efforts basis, of the vehicle's registration date, displacement, motorisation and documentary compliance with the Import Quota conditions;
- coordination with the Chinese Supplier for the issuance of export documentation (export licence, inspection certificate, certificate of origin, commercial invoice in the Client's name);
- coordination of the Certificate of Conformity (COC) inspection and of the ECTN/BSC issuance prior to vessel departure;
- coordination of maritime freight booking to the Algerian port designated in Annex A;
- referral of the Client to a licensed customs broker (transitaire) at the port of arrival, it being specified that the transitaire contracts directly with the Client.

3.3 **Expressly excluded:** payment of the Vehicle Price; payment of customs duties and taxes; customs clearance itself (reserved to licensed transitaires); vehicle registration; any mechanical warranty; and any act reserved by Algerian law to licensed professions.

Article 4 — Financial Flow and Currency Compliance

Stream	Amount	Payer	Payee	Channel
Vehicle Price	[USD/CNY _____]	Client	Chinese Supplier	International bank transfer from the Client's own foreign-currency funds
Facilitation Fee	[DZD _____]	Client	Agent	Local payment in Algeria (Article 5)

4.2 The Client pays the Vehicle Price **directly to the Chinese Supplier**. The Agent shall at no time receive, hold, transit or convert the Vehicle Price or any part thereof, in any currency.

4.3 **The Client bears sole and exclusive responsibility for:** (a) the **bank domiciliation** (domiciliation bancaire) of the import operation with an Algerian bank, where required; (b) funding the international transfer **from his/her own lawful foreign-currency resources**, in conformity with Algerian exchange regulations (notably the regulations of the Bank of Algeria on foreign-currency transfers by resident natural persons); (c) the payment of all customs duties, taxes, port fees, storage/demurrage charges and registration costs in Algeria.

4.4 The Client warrants that all funds used originate from lawful sources. The Agent may terminate this Agreement immediately, without refund of the Facilitation Fee, if it has reasonable grounds to believe the funds contravene Algerian exchange-control or anti-money-laundering legislation.

Article 5 — Facilitation Fee

5.1 In consideration of the Facilitation Services, the Client shall pay the Agent a fixed Facilitation Fee of **[AMOUNT IN DZD] Algerian Dinars** [(amount in words)], payable as follows: (a) [_____] % upon signature of this Agreement; (b) [_____] % upon the Client's written approval of a proposed vehicle; (c) [_____] % upon presentation of the bill of lading evidencing shipment.

5.2 **The Facilitation Fee becomes non-refundable in its entirety upon Sourcing Commencement** (Article 1.7), the Agent's costs and work being incurred from that point regardless of the outcome of the import operation.

5.3 The Facilitation Fee does not include, and shall never be construed to include, the Vehicle Price, freight, insurance, customs duties, taxes, transitaire fees or any third-party cost, all of which are borne by the Client.

Article 6 — Client Warranties: Eligibility and Quota

6.1 **The Client formally warrants and declares on his/her honour that:** (a) he/she is an Algerian resident natural person legally eligible to exercise the Import Quota; (b) **he/she has not imported any vehicle under the Import Quota regime during the thirty-six (36) months preceding the expected date of customs clearance**; (c) he/she is not subject to any customs, judicial or administrative measure barring the import; (d) all information and documents provided to the Agent are accurate and authentic.

6.2 These warranties constitute an **essential and determining condition** of the Agent's consent, without which the Agent would not have contracted.

Article 7 — Regulatory Risk Allocation and Hold-Harmless

7.1 **Quota rejection — hold harmless.** If Algerian Customs refuses clearance of the Vehicle, in whole or in part, on the ground that the Client had previously exhausted his/her Import Quota, or on the ground of any inaccuracy in the warranties of Article 6, then: (a) the Agent shall be **fully and irrevocably held harmless** and shall bear no liability whatsoever; (b) the Facilitation Fee remains fully acquired by the Agent; (c) all consequences (re-export costs, storage, demurrage, fines, confiscation, loss of the Vehicle Price) are borne exclusively by the Client; (d) the Client shall indemnify the Agent against any third-party claim (supplier, carrier, transitaire) arising from the rejection.

7.2 **Regulatory change.** Algerian import regulations (age limits, displacement limits, motorisation requirements, duty rates, exemptions) and Chinese export regulations may change at any time. The Agent shall not be liable for the consequences of any regulatory change occurring after the date of signature; costs already incurred remain due.

7.3 **Sovereign and administrative acts.** The Agent is not liable for decisions of Algerian Customs, the Bank of Algeria, port authorities, Chinese authorities or any administration, nor for vessel delays, port congestion or carrier failures, none of which are within its control.

7.4 **Age-limit transit risk.** The three (3)-year age limit is assessed at customs clearance and maritime transit time is outside the Agent's control. Provided the Vehicle was, at the date of vessel departure, within the age margin stipulated in Annex A, the risk of the age limit being exceeded due to transit or port delays is borne by the Client (see the Logistics Risk and Shipping Annex).

7.5 **Liability cap.** In all cases where the Agent's liability is nonetheless established by a final court decision, it shall be capped at the total amount of the Facilitation Fee actually received.

Article 8 — Obligations of the Client

The Client undertakes to: (a) provide all documents required for the operation (identity, residence certificate, sworn declaration, banking documents) within [] days of request; (b) respond to any vehicle proposal within [] days; (c) effect the international transfer within [] days of approving the proforma invoice; (d) appoint and remunerate a licensed transitaire; (e) take delivery of the Vehicle and pay all duties and taxes promptly upon arrival. Any delay attributable to the Client extends the Agent's deadlines accordingly and leaves storage/demurrage costs at the Client's charge.

Article 9 — Force Majeure

Neither Party shall be liable for non-performance caused by an event of force majeure as defined by Algerian law (unforeseeable, irresistible, external), including war, embargo, port closure, pandemic or acts of state. The affected Party shall notify the other within [] days. If the event persists beyond [] days, either Party may terminate; sums due for services already rendered remain acquired.

Article 10 — Termination

10.1 The Client may withdraw in writing **before Sourcing Commencement** against forfeiture of the instalment under Article 5.1(a) only. 10.2 After Sourcing Commencement, termination by the Client leaves the entire Facilitation Fee acquired by the Agent (Article 5.2). 10.3 The Agent may terminate for breach of the Client's warranties (Article 6) or payment default, upon formal notice (mise en demeure) remaining without effect for [] days.

Article 11 — Governing Law and Jurisdiction

11.1 This Agreement is governed exclusively by **the laws of the People's Democratic Republic of Algeria**, including the Civil Code, the Commercial Code and the customs and exchange regulations in force.

11.2 Any dispute arising from the validity, interpretation, performance or termination of this Agreement shall, failing amicable settlement within [] days of written notification, fall under the **exclusive jurisdiction of the territorially competent Algerian courts of [CITY / WILAYA of the Agent's registered office]**.

Article 12 — Language and Miscellaneous

12.1 Executed in [Arabic / French / English]. In case of divergence, the **[Arabic]** version prevails, Arabic being the language of judicial proceedings in Algeria. 12.2 **Notices** are valid if delivered by hand against receipt, by registered letter with acknowledgment, or by bailiff (huissier), to the addresses in the Preamble. 12.3 **Entire agreement;** amendments only by written instrument signed by both Parties; if any clause is held invalid the remainder survives, the Parties substituting a valid clause of equivalent economic effect. 12.4 The Client acknowledges having read, understood and freely accepted

every clause, in particular Articles 2, 5.2, 6 and 7, which are expressly approved.

Annex A — Vehicle Specifications and Compliance Parameters

Item	Value
Make / Model / Trim	[_____]
VIN	[_____]
Motorisation	[Petrol ≤ 1,600 cm³ / Hybrid ≤ 1,600 cm³ / 100% Electric]
First registration date (China)	[DD/MM/YYYY] — must be over 180 days before export and under 3 years at clearance
Maximum vehicle age at vessel departure	[2 years and 9 months]
Agreed Vehicle Price (indicative)	[USD/CNY _____]
Port of loading / discharge	[Shanghai/Ningbo/Guangzhou] to [Algiers/Oran/Annaba]

Annex B — Chinese Supplier: [Company name, licence number, address, contact] — seller of record issuing the commercial invoice in the Client's name. **Annex C — Sworn Declaration (Quota):** model déclaration sur l'honneur signed by the Client confirming non-use of the Import Quota in the preceding 36 months — to be attached before Sourcing Commencement.

THE AGENT	THE CLIENT
Name — Capacity — Signature and stamp	Name — ID No. — Signature preceded by the handwritten words “Read and approved”